



AGREED DISMISSAL ORDER (CASE MAY BE REINSTATED IF DEFENDANTS VIOLATE AGREEMENT)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where the Case Was Filed

Enter the case information as it appears on the Eviction Complaint.

PLAINTIFF: _____
First, Middle, Last Name

DEFENDANTS: _____

First, Middle, Last Name

☐ **Unknown Occupants**
Check the box for Unknown Occupants if it was checked on the Eviction Complaint.

Case Number

1. THIS CASE WAS IN COURT FOR (check all that apply):

☐ Trial ☐ Hearing on Motion ☐ Status ☐ Other: _____

2. PEOPLE IN COURT (check all that apply):

☐ Plaintiff ☐ Plaintiff's lawyer ☐ Defendants' lawyer

☐ Defendants: _____

Name(s) of Defendants

☐ Other: _____

ATTENTION DEFENDANTS: This case is being dismissed, which means it is now over. But the Plaintiff may bring this case back to court if you violate the agreement.

FOR COOK COUNTY CASES IN THE EARLY RESOLUTION PROGRAM (ERP) ONLY:

The parties acknowledge that the defendant has been served with the Notice of ERP and prior to entering into this settlement agreement, the defendant confirms that:

- 1) I understand that I can speak to a free attorney about this agreement before I sign it.
- 2) I called and talked with an attorney, and now I want to sign this agreement, or I decided not to talk to an attorney, and I want to sign the agreement anyway.
- 3) I understand that an attorney may not be able to help me after I have signed the agreement.

Fill out Section **3 only** if the parties agree Defendants will pay money. Otherwise, leave blank.

3. REPAYMENT AGREEMENT.

Enter the total amount the parties agree is owed. Check **A** or **B** to show how the money will be paid back. Include any other agreed terms like method of payment or the address where payment will be sent in Section 9.

- ☐ **Defendants will pay Plaintiff** the agreed amount of \$_____ for all past due rent assessments, court costs, and other amounts due under the lease / condo declaration through the move out date.

Defendants will make payments according to the schedule below (check **A** or **B**):

- ☐ **A.** \$_____ ☐ monthly on the _____
Day of Month
☐ every two weeks
☐ every week

beginning on _____ and continuing until paid in full.
Date (Month, Day, Year)

- OR -

- ☐ **B.** The total amount on or before: _____.
Date (Month, Day, Year)

Fill out Section **4 or 5** depending on your agreement.

4. DEFENDANTS ARE STAYING IN THE UNIT.

- ☐ **Defendants are staying** in the unit. They must make any payments listed above **plus** all future rent or assessment payments as they come due.

- OR -

5. DEFENDANTS ARE MOVING OUT OF THE UNIT.

List the date and time the parties agree on for Defendants to move out. Then check all the boxes that apply to your agreement.

- ☐ **Defendants must move out** by _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

- ☐ Defendants agree the amount owed to the Plaintiff is \$_____. Plaintiff agrees to waive this amount owed if Defendants move out by the date and time listed above.

Defendants must also (check all that apply):

- ☐ return keys to Plaintiff on _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

Describe what needs to be returned and where or how the keys should be returned

- ☐ notify Plaintiff that they have moved out by phone or text at: _____
Phone Number

or by email at: _____
Email Address

6. REINSTATE THE CASE (BRING THE CASE BACK TO COURT).

Check the boxes and fill in the blanks with your agreements. In **C**, a material violation is one that defeats the purpose of the agreement. For example, if the tenant is using the residence as a business location.

This **case is dismissed**. Plaintiff may file a motion to reinstate this case only if Defendants (check all that apply):

- A. ☐ Violate the repayment agreement in Section 3.
- B. ☐ Do not move out by the date in Section 5.
- C. ☐ Materially violate the lease after the date of this *Order* and before the date in Section 7.
- D. ☐ Other: _____

7. MOTION TO REINSTATE THE CASE (ASK TO BRING THE CASE BACK TO COURT).

Enter the final date the Plaintiff may ask to bring the case back to court. This date can be agreed on by the parties or provided by the judge.

Plaintiff may reinstate this case by filing a motion explaining how Defendants violated this *Order*. Defendants may assert relevant defenses to Plaintiff's motion. A motion to reinstate, and any defenses to the motion, must be based on events that occurred after the entry of this *Order*.

Plaintiff may not file a motion to reinstate this case after _____.
Date (Month, Day, Year)

8. VIOLATION OF AGREED ORDER.

In **A**, if you checked the third box, write in the number of days you agree on.

In **B**, the amount does not have to be the same as what is in Section 3.

If **Plaintiff proves that Defendants violated the terms** of this *Agreed Order*, the court will enter (check all that apply):

- A. ☐ an *Eviction Order* if Defendants are still in the property. The *Eviction Order* can be enforced (choose one):

☐ immediately. (The sheriff can evict Defendants right away when the *Eviction Order* is entered)

- OR -

☐ only after _____ days.

Number

(The sheriff must wait that number of days after the *Eviction Order* is entered to evict Defendants).

- B. ☐ A *Judgment for Money Only in Eviction Case* will be entered for (check all that apply):

☐ the agreed amount of \$ _____ minus any payments made.
Amount

☐ all rent/assessments due that Plaintiff proves are still owing.

☐ court costs.

against the following Defendants:

9. ADDITIONAL AGREED TERMS (if applicable):

10. REMOVING THE EVICTION COURT FILE FROM PUBLIC RECORD.

Check the box if both parties have agreed to ask the court to remove the eviction court file from the public record.

☐ The **parties agree to ask the judge to remove the eviction court file from the public record.** The parties understand that the judge will decide this.

- The parties also agree that **either party may reject the settlement** if the judge decides the file will not be removed from the public record.
- If either party rejects the settlement, they can go to trial or try to negotiate a new agreement.



Do *not* complete Sections 11 or 12. The judge will complete these Sections.

11. THE COURT FINDS:

A. This eviction is foreclosure related. Sealing is mandatory:

☐ Yes ☐ No

- OR -

B. The factors for discretionary sealing are met. (This is not a finding that Plaintiff violated Illinois Supreme Court Rule [137](#).):

☐ Yes ☐ No

C. Additional Findings:

12. IT IS ORDERED:

☐ The request to remove the file from the public record is **GRANTED**.

☐ The clerk shall ☐ seal ☐ impound this file upon entry of this *Agreed Order*.

☐ A separate order sealing or impounding this file will be entered.

☐ The request to remove the file from the public record is **DENIED**.

☐ The case is set for status hearing.

☐ The case is set for trial.

Next Court Date (if any): _____ at _____ ☐ a.m. ☐ p.m. in courtroom _____
Date Time Courtroom #

All parties (or their lawyer) who agree to this Order should sign it.

Signed and agreed to,

Plaintiff (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

ENTERED:

Judge

Date (Month, Day, Year)

Enter the name and contact information of the person completing this *Order*:

Name

Address

Email

Telephone

Attorney Number (if any)